

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----
MARQUISE BUTLER,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE HECTOR
LOPEZ, DETECTIVE ERIC BLAKE, AND
SERGEANT GEORGE DUFFY,Defendants.
-----**SUMMONS**

Index No.: _____

Plaintiff designates
Queens County
as the place of trialThe basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Albany, New York
September 29, 2022/s/ Jessica GormanJessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
MARQUISE BUTLER
26 Broadway, 3rd Floor
New York, New York 10004
P: (212) 500-3273
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Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

DETECTIVE HECTOR LOPEZ, 103rd PRECINCT, 168-02 91st AVE., JAMAICA, NY, 11432-5229

DETECTIVE ERIC BLAKE, 103rd PRECINCT, 168-02 91st AVE., JAMAICA, NY, 11432-5229

SERGEANT GEORGE DUFFY, 103rd PRECINCT, 168-02 91st AVE., JAMAICA, NY, 11432-5229

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CITY OF NEW YORK, NEW YORK CITY
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SERGEANT GEORGE DUFFY,

Defendants.

VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

Index No.: _____

MARQUISE BUTLER, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE HECTOR LOPEZ, DETECTIVE ERIC BLAKE, AND SERGEANT GEORGE DUFFY, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, Plaintiff resided in Queens County, City and State of New York. He currently resides in Queens County.

4. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant New York City Police Department.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

6. Upon information and belief, at all relevant times, Defendant DETECTIVE HECTOR LOPEZ was a Detective with the New York City Police Department, believed to be working out of the 103rd Precinct. This Defendant is sued in his individual and official capacities.

7. Upon information and belief, at all relevant times, Defendant DETECTIVE ERIC BLAKE was a Detective with the New York City Police Department, believed to be working out of the 103rd Precinct. This Defendant is sued in his individual and official capacities.

8. Upon information and belief, at all relevant times, Defendant SERGEANT GEORGE DUFFY was a Sergeant with the New York City Police Department, believed to be working out of the 103rd Precinct. This Defendant is sued in his individual and official capacities.

9. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

10. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

11. On October 16, 2019, the Plaintiff, Marquise Butler, was falsely arrested in Queens, New York.

12. He was at friend's home when he saw about four police officers pull up in an SUV or van. They came to the door and handcuffed Mr. Butler then brought him to the 105th Precinct.

13. He sat at the 105th Precinct for several hours before police from the 103rd Precinct showed up.

14. Defendants Detectives Lopez and Blake from the 103rd Precinct questioned Mr. Butler about a robbery that happened about a week earlier where two people were robbed and slashed by several assailants.

15. Upon information and belief, Mr. Butler denied any involvement in the robbery, and although there was not probable cause to believe he committed the crime, and the evidence connecting him appeared to be largely speculative, he was nonetheless charged and prosecuted for first degree assault, first degree robbery, and second degree robbery, violent felonies which carry years' long sentences.

16. Upon information and belief, Defendants Lopez and Blake were the primary Detectives who investigated the case, pulled Mr. Butler into it despite the apparent lack of sufficient legal cause to do so, charged him, and caused his arrest and prosecution. These Defendants also caused a wanted poster of Mr. Butler to be publicly posted on the Precinct's Facebook page.

17. Defendant Sergeant George Duffy is the supervising officer who approved/signed off on the investigation, arrest, charges, and prosecution of Mr. Butler.

18. Mr. Butler was ultimately brought to Central Booking, then arraigned and sent to

Riker's Island.

19. The charges against him were dismissed on or about November 22, 2019, and he was released from Riker's after 38 days incarcerated.

20. Mr. Butler was attacked by other inmates a few times while he was incarcerated at Riker's. He also lost his grandfather during this time, and was unable to attend his funeral. Mr. Butler was especially close to his grandfather and cannot get back what he missed.

21. This is not the first time police officers in the 103rd Precinct have been charged with violating the civil rights of citizens. There is a long documented history of such charges made against officers in this precinct.

22. Since just 2010, there have been more than 75 substantiated complaints and allegations of various violations against about 50 different officers, including Sergeants and Detectives.

23. The substantiated charges include those for various civil rights violations such as unlawful stops, frisks, searches of people, cars, and premises, threats of force, excessive force, threats of arrest, and issuing retaliatory summonses, among other violations.

24. Additionally, about 50 lawsuits have been brought in the last decade or so against officers in this Precinct for a host of civil rights violations. A majority of the named officers are Detectives. Those cases have been brought in state Supreme Courts and in federal courts.

25. At least 24 of these lawsuits settled, and a few others appear to still be pending.

26. Defendant Sergeant Duffy was a Defendant in one of these settled federal cases from 2013.

27. Defendant Blake was a Defendant in one of these settled Supreme Court cases from 2020. He was also disciplined twice in 2011.

CAUSES OF ACTION**FIRST CAUSE OF ACTION AGAINST DEFENDANTS LOPEZ, BLAKE, AND DUFFY
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST**

28. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

29. As set forth above, these Defendants arrested or cause Mr. Butler to be arrested, then brought false charges against him without probable cause and for crimes he did not commit.

30. This violated Mr. Butler's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**SECOND CAUSE OF ACTION AGAINST DEFENDANTS LOPEZ, BLAKE, AND DUFFY
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION**

31. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

32. As set forth above, these Defendants knowingly and intentionally caused Mr. Butler to be prosecuted without probable cause and without legal justification.

33. Mr. Butler spent 38 days incarcerated while he was prosecuted on false charges.

34. This violated his constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**THIRD CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT, AND SERGEANT DUFFY
PURSUANT TO 42 U.S.C. § 1983
IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID**

**VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

35. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

36. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

37. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

38. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

39. As set forth above, Defendants Lopez and Blake knowingly and intentionally caused Mr. Butler to be arrested, charged, and prosecuted without probable cause, without legal justification, and on false charges. Defendant Sergeant Duffy approved of the charges and prosecution.

40. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors.

41. As detailed above, incidents like these are part of a larger pattern and practice in the 103rd Precinct, and in the NYPD as a whole. This precinct has a history of police officers, including Sergeants and Detectives, routinely violating the civil rights of citizens with impunity.

Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

42. In light of the numerous substantiated charges and numerous successful lawsuits brought against multiple officers in the 103rd Precinct, higher-ups had to know there was a culture and practice there of violating people's civil rights. Higher-ups either failed to more closely examine or address this culture and practice or they turned a blind eye to it. They did this despite the fact that serious questions should have been raised in light of the precinct's history.

43. Yet, upon information and belief, the Defendant City of New York and the New York City Police Department failed to more closely supervise or monitor or to provide extra training or take any other remedial or preventative steps to ensure officers in the precinct acted in compliance with the law.

44. The violations against Mr. Butler occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

45. These actions and inactions violated Mr. Butler's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

46. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
September 29, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
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New York, New York 10004
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E: jgorman@lebedinkofmanlaw.com

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are communications with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Albany, New York
September 29, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.